

Asset Transfer Cases: Initial Research

Verified Domestic and Cross-Border Transfers of Confiscated Criminal Assets

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1 Purpose

This note analyzes **interstate asset recovery and return mechanisms** — the legal and institutional architecture by which one state returns confiscated criminal assets to another state or to a monitored public-benefit mechanism. It focuses on **cross-border return cases** where the transfer itself is documented, not merely freezing or seizure.

The paper provides **case-by-case analysis** of verified interstate returns, covering for each case: accusation, parties, procedural path, legal basis for confiscation and return, use of returned assets, and monitoring arrangements. Domestic victim-compensation models (Madoff, Western Union) are included briefly as **comparator examples** for distribution mechanics, but the primary focus is interstate restitution.

The note relies on **official sources**: press releases, treaties, MoUs, court decisions, and institutional monitoring reports. Source links appear under each case for independent verification.

Pattern: In the strongest examples, interstate return requires (1) final confiscation/forfeiture in the recovering state; (2) a legal allocation mechanism (bilateral MoU, tripartite agreement, or repatriation decision); and (3) a monitored implementation vehicle. Returns are not simple budget transfers; they combine confiscation with use-of-funds controls and oversight.

2 Interstate Case Matrix

Case	Accusation / predicate offense	Parties	Forum / decision date	Amount	Legal basis for confiscation	Legal basis for return	Recipient / use of funds	Monitoring / joint project	Sources
Switzerland -> Nigeria (Abacha II)	Corruption, land embezzlement, laundering of state assets under Gen. Sani Abacha	Nigeria (requesting), Switzerland (confiscating), World Bank (monitoring)	Swiss Federal Supreme Court ATF 131 II 169 (7 Feb 2005); Geneva confiscation (8 Mar 2016); tripartite MOU (4 Dec 2017)	USD 321 million	Swiss criminal procedure (SCC Art. 69–72); Geneva prosecutor confiscation	Tripartite restitution agreement (Switzerland–Nigeria–World Bank); MLA framework (IRSG)	National Social Safety Net Project; cash transfers to poor households	World Bank monitors same as IDA Credit; Nigerian CSOs (NAR); bi-annual reports	1234

¹Swiss Federal Supreme Court, ATF 131 II 169 (Abacha et consorts v. Office fédéral de la justice), case 1A.215/2004, 7 Feb 2005, https://search.bger.ch/ext/eurospider/live/de/php/clir/http/index.php?highlight_docid=atf%3A%2F%2F131-II-169%3Ait&lang=de&type=show_document.

²Swiss FDFA, “Switzerland and Nigeria conclude agreement on the return of USD 321 million of Abacha’s assets”, 8 Mar 2016, <https://www.eda.admin.ch/countries/romania/ro/home/aktuell/news.html/content/eda/en/meta/news/2016/3/8/60907>.

³Swiss FDFA, “Restitution of USD 321 million by Switzerland to Nigeria under World Bank oversight: signing of a tripartite agreement”, 4 Dec 2017, <https://www.eda.admin.ch/countries/democratic-republic-congo/en/home/news/news.html/content/eda/en/meta/news/2017/12/4/69088>.

⁴World Bank, “World Bank Monitoring of Repatriated Abacha Funds”, 4 Dec 2017, <https://www.worldbank.org/en/news/factsheet/2017/12/04/world-bank-monitoring-of-repatriated-abacha-funds>.

Case	Accusation / predicate offense	Parties	Forum / decision date	Amount	Legal basis for confiscation	Legal basis for return	Recipient / use of funds	Monitoring / joint project	Sources
UK -> Nigeria (Ibori)	Money laundering, conspiracy to defraud, forgery (Ibori network)	UK (confiscating), Nigeria (recipient)	UK confiscation orders since 2010; UK–Nigeria agreement (9 Mar 2021)	GBP 4.2 million	POCA 2002 s.6 confiscation orders	UK–Nigeria bilateral MoU and annex	Lagos–Ibadan Expressway, Abuja–Kano road, second Niger Bridge; NSIA administers	Cleen Foundation independent monitoring; Federal Monitoring Team; annual accountability reports	⁵⁶
U.S. -> Malaysia (1MDB)	Misappropriation, bribery, money laundering (1MDB scheme)	U.S. (forfeiting), Malaysia (recipient)	U.S. civil forfeiture (41 actions from Jul 2016); Ninth Circuit (13 Jun 2023); DOJ repatriation tranches	~USD 1.4 billion	18 USC 981 civil forfeiture; Kleptocracy Asset Recovery Initiative	DOJ repatriation decision; bilateral U.S.–Malaysia framework	Malaysia 1MDB Asset Recovery Trust Account; benefit of people of Malaysia	Trust account administration; bilateral repatriation framework	⁷⁸
Switzerland -> Kazakhstan	Money laundering (Geneva proceedings)	Switzerland, World Bank, Kazakhstan	Geneva confiscation (2011); Switzerland–World Bank agreement (Dec 2012)	USD 48 million (2012); USD 115 million (BOTA, 2007–2015)	Swiss criminal procedure; Geneva judicial authorities	Switzerland–World Bank agreement; BOTA Foundation (tripartite Switzerland–U.S.–Kazakhstan)	Youth policy, energy efficiency (2012); BOTA Child and Youth Development Foundation	World Bank; BOTA Foundation oversight	⁹¹⁰
Switzerland / Luxembourg -> Peru	Corruption (Montesinos/Fujimori-era; assets frozen since early 2000s)	Switzerland, Luxembourg, Peru	Confiscation procedures concluded 2020; trilateral agreement (16 Dec 2020)	USD 16.3 million (CHF) + EUR 9.7 million (LUX)	Swiss and Luxembourg criminal/forfeiture procedures; Peru non-conviction based forfeiture	Trilateral agreement (Switzerland–Luxembourg–Peru)	Rule of law, judicial transparency, corruption projects	Peru judiciary, public ministry, justice ministry implementation; follow-up meeting May 2022	¹¹¹²

⁵GOV.UK, “UK to send millions of pounds recovered from corrupt officials back to Nigeria”, 9 Mar 2021, <https://www.gov.uk/government/news/uk-to-send-millions-of-pounds-recovered-from-corrupt-officials-back-to-nigeria>.

⁶GOV.UK, “MoU between UK and Nigeria on the modalities for return of stolen assets confiscated by the UK: annex 1”, 2021, <https://www.gov.uk/government/publications/return-of-stolen-assets-confiscated-by-the-uk-agreement-between-the-uk-and-nigeria/mou-between-uk-and-nigeria-on-the-modalities-for-return-of-stolen-assets-confiscated-by-the-uk-annex-1>.

⁷U.S. Department of Justice, “Justice Department Repatriates \$1.4B Misappropriated 1MDB Funds to Malaysia”, 13 Jun 2024, <https://www.justice.gov/archives/opa/pr/justice-department-repatriates-14b-misappropriated-1mdb-funds-malaysia>.

⁸U.S. Court of Appeals for the Ninth Circuit, *United States v. PetroSaudi Oil Services (Venezuela) Ltd.*, Nos. 21-56228 & 22-55025, filed 13 Jun 2023, <https://cdn.ca9.uscourts.gov/datastore/opinions/2023/06/13/21-56228.pdf>.

⁹Swiss FDFA, “Switzerland and the World Bank sign agreement on the restitution of Kazakh assets”, 21 Dec 2012, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2012/12/21/47337>.

¹⁰Swiss FDFA, “Restitution of stolen assets to Kazakhstan successfully completed”, 9 Dec 2015, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2015/12/9/59867>.

¹¹Swiss FDFA, “Trilateral agreement: Switzerland and Luxembourg to return illicitly acquired assets to Peru”, 16 Dec 2020, <https://www.eda.admin.ch/countries/new-zealand/en/home/news/news.html/content/eda/en/meta/news/2020/12/16/81674>.

¹²Swiss FDFA, “A dynamic Swiss policy on restitution of illicit assets”, 16 Dec 2020, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/newsuebersicht/2020/12/abkommen-peru.html>.

3 Interstate Case Analysis (Priority Cases)

3.1 Switzerland -> Nigeria (Abacha II)

3.1.1 Essence of the accusation

Assets traced to late Gen. Sani Abacha and family held in Swiss banks — corruption, embezzlement, and laundering of illicit state assets. Nigeria requested mutual legal assistance for recovery.

3.1.2 Parties

- **Requesting state:** Nigeria
- **Confiscating state:** Switzerland (Geneva prosecutorial authorities, Swiss Federal Supreme Court)
- **Monitoring:** World Bank; Nigerian civil society (Network on Asset Recovery)

3.1.3 Procedural path and court decision

1. Nigeria submits MLA request under Swiss IRSG (Bundesgesetz über internationale Rechtshilfe in Strafsachen).
2. Swiss Federal Supreme Court ATF 131 II 169 (7 Feb 2005, case 1A.215/2004) confirms MLA and return parameters under IRSG while proceedings ongoing in Nigeria.¹³
3. Geneva prosecutor initiates criminal proceedings against Abba Abacha; assets frozen.
4. Swiss court (Dec 2014) rules repatriation conditional on World Bank monitoring.
5. Geneva Attorney General confiscates assets (8 Mar 2016); assets transferred to Swiss Confederation under SCC Art. 69–72.¹⁴
6. Tripartite MOU signed 4 Dec 2017 (Switzerland, Nigeria, World Bank) — USD 321 million.¹⁵

3.1.4 Basis for return of assets

Element	Legal basis
Confiscation	Swiss criminal procedure (SCC Art. 69–72); Geneva prosecutor confiscation order
Transfer abroad	Tripartite restitution agreement; IRSG MLA framework
Restrictions on use	MOU requires World Bank monitoring, tranche-based disbursement, earmarking for National Social Safety Net Project

3.1.5 Use of returned assets / joint projects

Funds applied to **National Social Safety Net Project** (IDA Credit P151488): targeted cash transfers to poor and vulnerable Nigerian households. Tranche-based release; same monitoring as IDA Credit. Nigerian CSOs under Network on Asset Recovery monitor cash-to-beneficiaries; bi-annual reports per tripartite agreement.¹⁶

3.1.6 Verification note

- Transfer verified: Yes (official Swiss and World Bank sources)
- Court decision verified: Yes (ATF 131 II 169)
- Return instrument verified: Yes (2017 tripartite MOU)
- Use-of-funds evidence verified: Yes (World Bank factsheet, project designation)
- Open gaps: None material

3.1.7 Sources

- Swiss Federal Supreme Court ATF 131 II 169¹⁷
- Swiss FDFA, Abacha letter of intent (8 Mar 2016)¹⁸

¹³Swiss Federal Supreme Court, ATF 131 II 169 (Abacha et consorts v. Office fédéral de la justice), case 1A.215/2004, 7 Feb 2005, https://search.bger.ch/ext/eurospider/live/de/php/clir/http/index.php?highlight_docid=atf%3A%2F%2F131-II-169%3Ait&lang=de&type=show_document.

¹⁴Swiss FDFA, “Switzerland and Nigeria conclude agreement on the return of USD 321 million of Abacha’s assets”, 8 Mar 2016, <https://www.eda.admin.ch/countries/romania/ro/home/aktuell/news.html/content/eda/en/meta/news/2016/3/8/60907>.

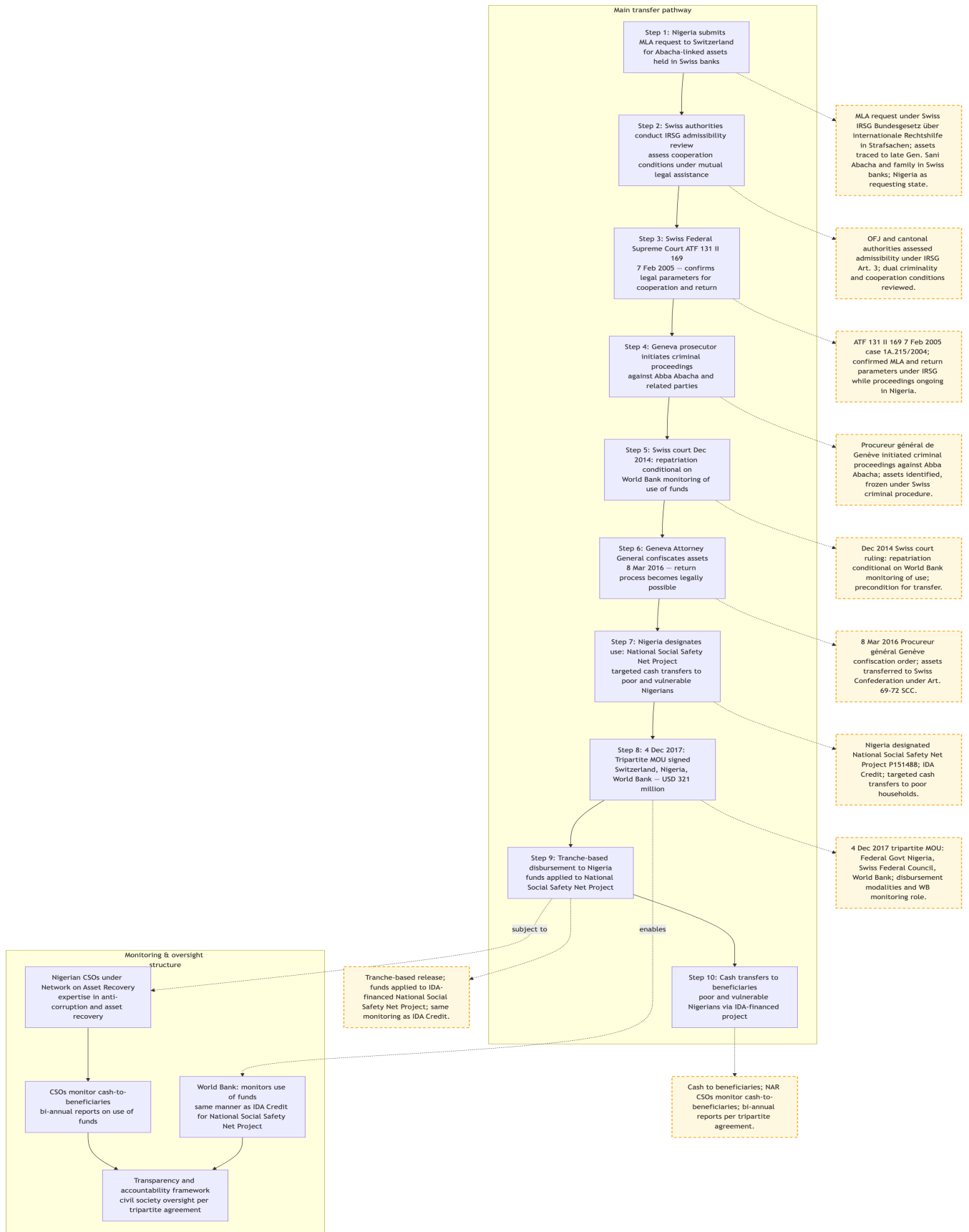
¹⁵Swiss FDFA, “Restitution of USD 321 million by Switzerland to Nigeria under World Bank oversight: signing of a tripartite agreement”, 4 Dec 2017, <https://www.eda.admin.ch/countries/democratic-republic-congo/en/home/news/news.html/content/eda/en/meta/news/2017/12/4/69088>.

¹⁶World Bank, “World Bank Monitoring of Repatriated Abacha Funds”, 4 Dec 2017, <https://www.worldbank.org/en/news/factsheet/2017/12/04/world-bank-monitoring-of-repatriated-abacha-funds>.

¹⁷Swiss Federal Supreme Court, ATF 131 II 169 (Abacha et consorts v. Office fédéral de la justice), case 1A.215/2004, 7 Feb 2005, https://search.bger.ch/ext/eurospider/live/de/php/clir/http/index.php?highlight_docid=atf%3A%2F%2F131-II-169%3Ait&lang=de&type=show_document.

¹⁸Swiss FDFA, “Switzerland and Nigeria conclude agreement on the return of USD 321 million of Abacha’s assets”, 8 Mar 2016, <https://www.eda.admin.ch/countries/romania/ro/home/aktuell/news.html/content/eda/en/meta/news/2016/3/8/60907>.

- Swiss FDFA, tripartite agreement (4 Dec 2017)¹⁹
- World Bank, monitoring of repatriated Abacha funds²⁰



¹⁹Swiss FDFA, “Restitution of USD 321 million by Switzerland to Nigeria under World Bank oversight: signing of a tripartite agreement”, 4 Dec 2017, <https://www.eda.admin.ch/countries/democratic-republic-congo/en/home/news/news.html/content/eda/en/meta/news/2017/12/4/69088>.

²⁰World Bank, “World Bank Monitoring of Repatriated Abacha Funds”, 4 Dec 2017, <https://www.worldbank.org/en/news/factsheet/2017/12/04/world-bank-monitoring-of-repatriated-abacha-funds>.

3.2 U.S. -> Malaysia (1MDB)

3.2.1 Essence of the accusation

Large-scale misappropriation, bribery, and money laundering linked to the 1MDB scheme. Assets traceable to the scheme were held or transited through the U.S. financial system.

3.2.2 Parties

- **Forfeiting state:** United States (DOJ, Kleptocracy Asset Recovery Initiative)
- **Recipient:** Malaysia (1MDB Asset Recovery Trust Account)
- **Beneficiary:** People of Malaysia

3.2.3 Procedural path and court decision

1. DOJ initiates 41 in rem civil forfeiture actions under 18 USC 981 from Jul 2016.²¹
2. U.S. district courts order restraint and seizure; res preserved pending litigation.
3. Ninth Circuit affirms seizure-preservation orders in *U.S. v. PetroSaudi Oil Services (Venezuela) Ltd.* (13 Jun 2023, Nos. 21-56228, 22-55025).²²
4. Settlements and default judgments; assets converted to recoverable value.
5. DOJ repatriation tranche decisions under bilateral U.S.–Malaysia framework.
6. Transfer to Malaysia 1MDB Asset Recovery Trust Account (e.g. USD 452m Aug 2021, USD 156m Jun 2024) — total ~USD 1.4 billion.²³

3.2.4 Basis for return of assets

Element	Legal basis
Confiscation	18 USC 981 civil forfeiture; district court restraining orders and warrants of arrest in rem
Transfer abroad	DOJ MLARS repatriation decision; bilateral U.S.–Malaysia repatriation framework
Restrictions on use	Designated trust account; use for public benefit per bilateral agreement

3.2.5 Use of returned assets / joint projects

Funds administered via **Malaysia 1MDB Asset Recovery Trust Account** for the benefit of the people of Malaysia. Tranche-based returns; designated destination per bilateral framework. Trust account administration for public benefit.²⁴

3.2.6 Verification note

- Transfer verified: Yes (DOJ official releases)
- Court decision verified: Yes (Ninth Circuit in PetroSaudi-related track)
- Return instrument verified: Yes (bilateral repatriation framework; DOJ announcements)
- Use-of-funds evidence verified: Partial (trust account designated; implementation details less public)
- Open gaps: Trust account implementation and monitoring reports not as detailed as Swiss/UK cases

3.2.7 Sources

- DOJ, 1MDB repatriation (13 Jun 2024)²⁵
- U.S. Court of Appeals for the Ninth Circuit, *U.S. v. PetroSaudi Oil Services*²⁶

²¹U.S. Department of Justice, “Justice Department Repatriates \$1.4B Misappropriated 1MDB Funds to Malaysia”, 13 Jun 2024, <https://www.justice.gov/archives/opa/pr/justice-department-repatriates-14b-misappropriated-1mdb-funds-malaysia>.

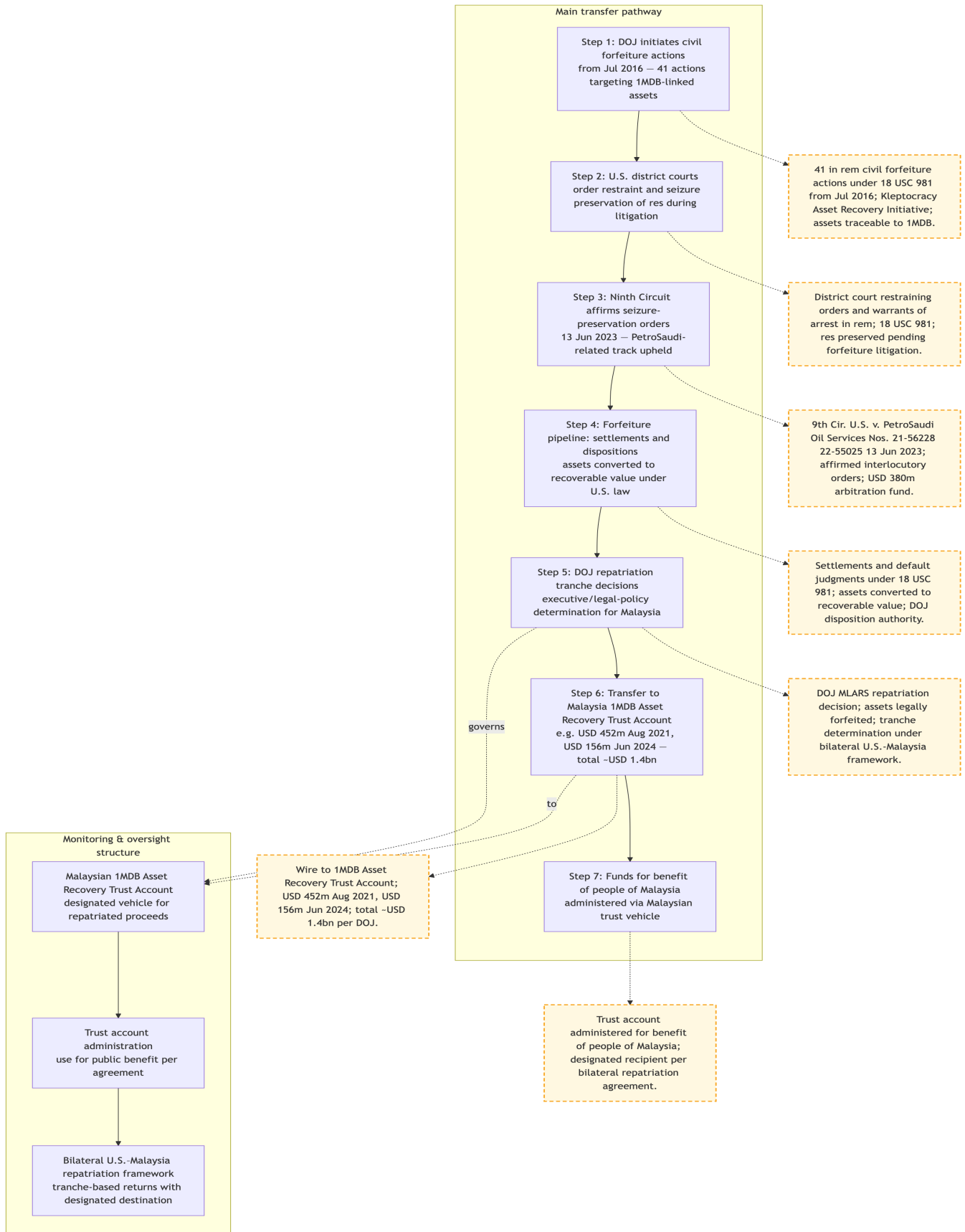
²²U.S. Court of Appeals for the Ninth Circuit, *United States v. PetroSaudi Oil Services (Venezuela) Ltd.*, Nos. 21-56228 & 22-55025, filed 13 Jun 2023, <https://cdn.ca9.uscourts.gov/datastore/opinions/2023/06/13/21-56228.pdf>.

²³U.S. Department of Justice, “Justice Department Repatriates \$1.4B Misappropriated 1MDB Funds to Malaysia”, 13 Jun 2024, <https://www.justice.gov/archives/opa/pr/justice-department-repatriates-14b-misappropriated-1mdb-funds-malaysia>.

²⁴U.S. Department of Justice, “Justice Department Repatriates \$1.4B Misappropriated 1MDB Funds to Malaysia”, 13 Jun 2024, <https://www.justice.gov/archives/opa/pr/justice-department-repatriates-14b-misappropriated-1mdb-funds-malaysia>.

²⁵U.S. Department of Justice, “Justice Department Repatriates \$1.4B Misappropriated 1MDB Funds to Malaysia”, 13 Jun 2024, <https://www.justice.gov/archives/opa/pr/justice-department-repatriates-14b-misappropriated-1mdb-funds-malaysia>.

²⁶U.S. Court of Appeals for the Ninth Circuit, *United States v. PetroSaudi Oil Services (Venezuela) Ltd.*, Nos. 21-56228 & 22-55025, filed 13 Jun 2023, <https://cdn.ca9.uscourts.gov/datastore/opinions/2023/06/13/21-56228.pdf>.



3.3 UK -> Nigeria (Ibori)

3.3.1 Essence of the accusation

Money laundering (POCA s.327), conspiracy to defraud, forgery — proceeds linked to former Delta State Governor James Ibori and associates. UK Met Police Proceeds of Crime Unit, NCA, and CPS investigated.

3.3.2 Parties

- **Confiscating state:** United Kingdom (Met Police, NCA, CPS)
- **Recipient:** Nigeria (Federal Republic; Nigeria Sovereign Investment Authority administers)
- **Monitoring:** Cleen Foundation (independent); Federal Republic of Nigeria Monitoring Team

3.3.3 Procedural path and court decision

1. UK investigation and prosecution of Ibori network.
2. Feb 2012: Ibori pleads guilty at Southwark Crown Court; 13 years imprisonment; confiscation proceedings under POCA s.6 followed.
3. UK confiscation orders since 2010 establish recoverable criminal property value.²⁷
4. UK–Nigeria return negotiations under 2016 MoU; framework for destination and safeguards.
5. 9 Mar 2021: UK–Nigeria agreement and annex signed — GBP 4.2 million; project use and oversight conditions.^{28,29}
6. Transfer under bilateral MoU; funds to NSIA for designated projects.

3.3.4 Basis for return of assets

Element	Legal basis
Confiscation	POCA 2002 s.6 confiscation orders
Transfer abroad	UK–Nigeria bilateral MoU and annex (2021)
Restrictions on use	Annex: budget plan and work schedule per project; bar on disbursement to perpetrators and related persons; Cleen Foundation independent monitoring

3.3.5 Use of returned assets / joint projects

Funds earmarked for **Lagos–Ibadan Expressway, Abuja–Kano road, second Niger Bridge** — infrastructure and public benefit. Nigeria Sovereign Investment Authority (NSIA) administers implementation. Cleen Foundation provides independent monitoring (infrastructure, anti-corruption, procurement). Federal Monitoring Team oversees implementation; annual accountability reports published.³⁰

3.3.6 Verification note

- Transfer verified: Yes (UK official announcement and annex)
- Court decision verified: Partial (annex confirms confiscation-order basis; full court order text not yet located)
- Return instrument verified: Yes (2021 UK–Nigeria agreement and annex)
- Use-of-funds evidence verified: Yes (project earmarking; monitoring structure)
- Open gaps: Full-text public copy of Southwark confiscation orders pending

3.3.7 Sources

- GOV.UK, UK–Nigeria return announcement (9 Mar 2021)³¹
- GOV.UK, annex on Ibori returned funds and confiscation orders³²

²⁷GOV.UK, “MoU between UK and Nigeria on the modalities for return of stolen assets confiscated by the UK: annex 1”, 2021, <https://www.gov.uk/government/publications/return-of-stolen-assets-confiscated-by-the-uk-agreement-between-the-uk-and-nigeria/mou-between-uk-and-nigeria-on-the-modalities-for-return-of-stolen-assets-confiscated-by-the-uk-annex-1>.

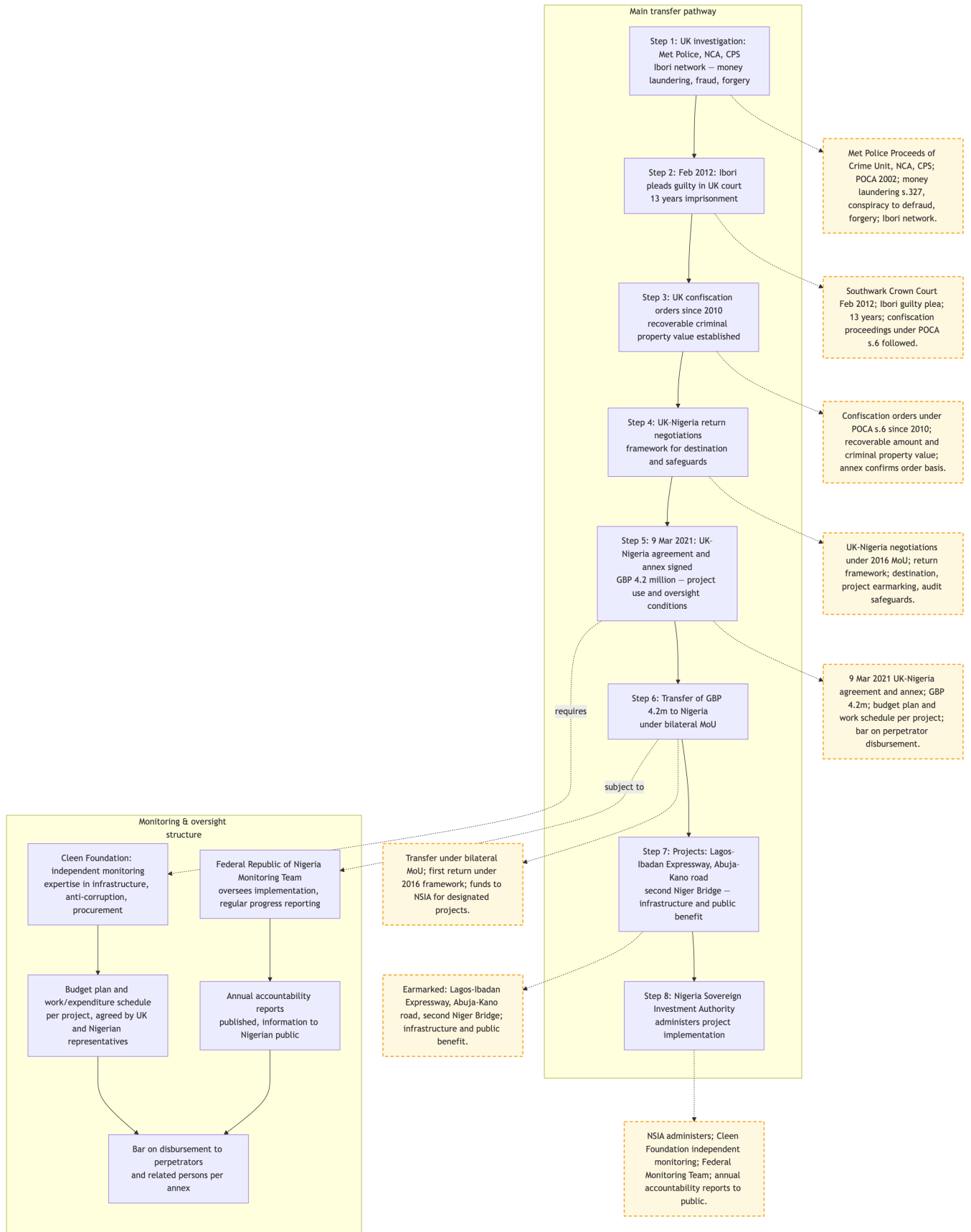
²⁸GOV.UK, “UK to send millions of pounds recovered from corrupt officials back to Nigeria”, 9 Mar 2021, <https://www.gov.uk/government/news/uk-to-send-millions-of-pounds-recovered-from-corrupt-officials-back-to-nigeria>.

²⁹GOV.UK, “MoU between UK and Nigeria on the modalities for return of stolen assets confiscated by the UK: annex 1”, 2021, <https://www.gov.uk/government/publications/return-of-stolen-assets-confiscated-by-the-uk-agreement-between-the-uk-and-nigeria/mou-between-uk-and-nigeria-on-the-modalities-for-return-of-stolen-assets-confiscated-by-the-uk-annex-1>.

³⁰GOV.UK, “UK to send millions of pounds recovered from corrupt officials back to Nigeria”, 9 Mar 2021, <https://www.gov.uk/government/news/uk-to-send-millions-of-pounds-recovered-from-corrupt-officials-back-to-nigeria>.

³¹GOV.UK, “UK to send millions of pounds recovered from corrupt officials back to Nigeria”, 9 Mar 2021, <https://www.gov.uk/government/news/uk-to-send-millions-of-pounds-recovered-from-corrupt-officials-back-to-nigeria>.

³²GOV.UK, “MoU between UK and Nigeria on the modalities for return of stolen assets confiscated by the UK: annex 1”, 2021, <https://www.gov.uk/government/publications/return-of-stolen-assets-confiscated-by-the-uk-agreement-between-the-uk-and-nigeria/mou-between-uk-and-nigeria-on-the-modalities-for-return-of-stolen-assets-confiscated-by-the-uk-annex-1>.



4 Additional Interstate Cases

4.1 Switzerland -> Kazakhstan

4.1.1 Essence of the accusation

Money laundering; assets held in Swiss banks, confiscated in 2011 by Geneva judicial authorities in criminal proceedings.

4.1.2 Parties

- **Confiscating state:** Switzerland (Geneva judicial authorities)
- **Recipient:** Kazakhstan
- **Monitoring / vehicle:** World Bank (2012 agreement); BOTA Foundation (2007–2015, tripartite Switzerland–U.S.–Kazakhstan)

4.1.3 Procedural path and decision

- 2011: Geneva authorities confiscate assets in money-laundering proceedings.
- Dec 2012: Switzerland and World Bank sign agreement to return USD 48 million for youth policy and energy efficiency projects.³³
- Earlier track: BOTA Kazakh Child and Youth Development Foundation (2007) — USD 115 million returned by Dec 2015.³⁴

4.1.4 Basis for return

Element	Legal basis
Confiscation	Swiss criminal procedure; Geneva judicial authorities
Transfer abroad	Switzerland–World Bank agreement (2012); BOTA tripartite framework (2007)
Restrictions on use	Project earmarking (youth, energy efficiency); BOTA Foundation oversight

4.1.5 Use of returned assets

2012 tranche: youth policy and energy efficiency projects. BOTA: Child and Youth Development Foundation.³⁵³⁶

4.1.6 Verification note

- Transfer verified: Yes (Swiss official sources)
- Court decision verified: Partial (Geneva proceedings cited; full decision not linked)
- Return instrument verified: Yes (2012 agreement; BOTA completion 2015)
- Use-of-funds evidence verified: Yes (project designation; BOTA completion 2015)
- Open gaps: Geneva court decision link

4.1.7 Sources

- Swiss FDFA, Kazakhstan restitution (21 Dec 2012)³⁷
- Swiss FDFA, BOTA completion (9 Dec 2015)³⁸

4.2 Switzerland / Luxembourg -> Peru

4.2.1 Essence of the accusation

Corruption linked to Vladimiro Montesinos Torres (head of Fujimori-era intelligence) and associates. Assets frozen in Swiss and Luxembourg banks since early 2000s. Peru used non-conviction based asset forfeiture.

4.2.2 Parties

- **Confiscating states:** Switzerland, Luxembourg
- **Recipient:** Peru
- **Use:** Rule of law, judicial transparency, anti-corruption projects

³³Swiss FDFA, “Switzerland and the World Bank sign agreement on the restitution of Kazakh assets”, 21 Dec 2012, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2012/12/21/47337>.

³⁴Swiss FDFA, “Restitution of stolen assets to Kazakhstan successfully completed”, 9 Dec 2015, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2015/12/9/59867>.

³⁵Swiss FDFA, “Switzerland and the World Bank sign agreement on the restitution of Kazakh assets”, 21 Dec 2012, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2012/12/21/47337>.

³⁶Swiss FDFA, “Restitution of stolen assets to Kazakhstan successfully completed”, 9 Dec 2015, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2015/12/9/59867>.

³⁷Swiss FDFA, “Switzerland and the World Bank sign agreement on the restitution of Kazakh assets”, 21 Dec 2012, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2012/12/21/47337>.

³⁸Swiss FDFA, “Restitution of stolen assets to Kazakhstan successfully completed”, 9 Dec 2015, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2015/12/9/59867>.

4.2.3 Procedural path and decision

- Assets frozen for nearly two decades; complex proceedings.
- Confiscation procedures concluded 2020.
- 16 Dec 2020: Trilateral agreement signed — Switzerland USD 16.3 million, Luxembourg EUR 9.7 million.³⁹⁴⁰
- Historic: first execution of a Peruvian confiscation order in a foreign jurisdiction based on Peru’s non-conviction based forfeiture.

4.2.4 Basis for return

Element	Legal basis
Confiscation	Swiss and Luxembourg criminal/forfeiture procedures; Peru non-conviction based forfeiture
Transfer abroad	Trilateral agreement (Switzerland–Luxembourg–Peru)
Restrictions on use	Earmarking for rule of law, judicial transparency, anti-corruption

4.2.5 Use of returned assets

Projects strengthening rule of law, judicial transparency, and fight against corruption and impunity. Peru judiciary, public ministry, and justice ministry implement. Follow-up meeting May 2022 tracked implementation.⁴¹

4.2.6 Verification note

- Transfer verified: Yes (Swiss, Luxembourg, Peru official sources)
- Court decision verified: Partial (confiscation procedures cited; court texts not linked)
- Return instrument verified: Yes (2020 trilateral agreement)
- Use-of-funds evidence verified: Yes (project designation; May 2022 follow-up)
- Open gaps: Full court/confiscation decision links

4.2.7 Sources

- Swiss FDFA, Peru trilateral agreement (16 Dec 2020)⁴²
- Swiss FDFA, dynamic policy on restitution (16 Dec 2020)⁴³

5 Domestic Transfer Cases (Comparator Models)

Madoff and Western Union are **domestic** victim-compensation models — forfeited assets distributed to victims within the U.S. legal system. They illustrate **distribution mechanics** (remission, victim funds) but are **not interstate restitution cases**. Included here as comparators.

5.1 U.S. Madoff Victim Fund

DOJ-administered victim fund; >USD 4.3 billion to 40,930 victims in 127 countries (93.71% recovery).⁴⁴ Legal basis: civil and criminal forfeiture; formal DOJ victim compensation structure.

5.2 U.S. Western Union Remission Fund

>USD 420 million to >175,000 victims via remission.⁴⁵ Funds forfeited from Western Union; formal remission process. Shows transfer-to-victims structure when proceeds pass through the state.

³⁹Swiss FDFA, “Trilateral agreement: Switzerland and Luxembourg to return illicitly acquired assets to Peru”, 16 Dec 2020, <https://www.eda.admin.ch/countries/new-zealand/en/home/news/news.html/content/eda/en/meta/news/2020/12/16/81674>.

⁴⁰Swiss FDFA, “A dynamic Swiss policy on restitution of illicit assets”, 16 Dec 2020, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/newsuebersicht/2020/12/abkommen-peru.html>.

⁴¹Swiss FDFA, “A dynamic Swiss policy on restitution of illicit assets”, 16 Dec 2020, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/newsuebersicht/2020/12/abkommen-peru.html>.

⁴²Swiss FDFA, “Trilateral agreement: Switzerland and Luxembourg to return illicitly acquired assets to Peru”, 16 Dec 2020, <https://www.eda.admin.ch/countries/new-zealand/en/home/news/news.html/content/eda/en/meta/news/2020/12/16/81674>.

⁴³Swiss FDFA, “A dynamic Swiss policy on restitution of illicit assets”, 16 Dec 2020, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/newsuebersicht/2020/12/abkommen-peru.html>.

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